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Underpayment Calculation: Marisol Reyes

Prepared by Jun Takahashi, paralegal, 15 June 2026. Reviewed by Owen Pretorius, associate. Reference ML-2026-0319.

Basis: Enterprise Agreement AG2023/1982 clause 18.2 (overtime 150% for the first 2 hours Monday to Friday, 200% after that and on Saturdays) and clause 22.2 (annual leave loading 17.5%). Harbourline paid all overtime at the single ordinary rate. Period: 1 October 2024 to 17 April 2026 (last day worked before suspension).

Table 1: overtime shortfall

Period and rate	Overtime band	Hours	Shortfall per hour	Shortfall	
A: 1 Oct 2024 to 30 Jun 2025 at $44.00	150% band	64.0	$22.00	$1,408.00	
A: at $44.00	200% band	26.0	$44.00	$1,144.00	
Subtotal A					$2,552.00
B: 1 Jul 2025 to 17 Apr 2026 at $46.20	150% band	80.0	$23.10	$1,848.00	
B: at $46.20	200% band	38.0	$46.20	$1,755.60	
Subtotal B					$3,603.60

Total overtime shortfall: $6,155.60 (total overtime hours 208.0).

Table 2: annual leave loading not paid

Leave taken	Hours	Loading per hour	Shortfall
9 to 20 December 2024 at $44.00 (2 weeks)	76.0	$7.70	$585.20
5 to 23 January 2026 at $46.20 (3 weeks)	114.0	$8.085	$921.69
Total annual leave loading shortfall	190.0		$1,506.89

Table 3: superannuation on overtime shortfall

Period	Overtime shortfall	Rate	Super
A	$2,552.00	11.5%	$293.48
B	$3,603.60	12%	$432.43
Total super			$725.91

Total

Overtime $6,155.60 plus leave loading $1,506.89 equals $7,662.49. Adding super of $725.91 gives a total underpayment of $8,388.40, before interest. The calculation does not include the notice pay of $8,778.00 claimed separately.